LONG AND WINDING FEUD

- In May, Bengal governor C.V. Ananda Bose was accused of sexual harassment by a Raj Bhavan staffer
- Bose sued CM Mamata Banerjee for defamation; the Calcutta HC has condemned the latter's comments
- Raj Bhavan says an internal judicial enquiry found the charges "false and ill-motivated"
- The state also filed a petition against Bose in the apex court for allegedly stalling bills
- Raj Bhavan claims no bills pending due to any lapses by Governor
- The Supreme Court is now examining the legal immunity from criminal probes granted under Article 361 to governors

sides was visible when even an innocuous protocol event—the swearing-in of two TMC MLAs—devolved into an unlovely tug of war. This is how that panned out: in bypolls held on June 4, actress Sayantika Banerjee and Reyat Hossain Sarkar were elected from Baranagar and Bhagawangola respectively. On June 21, Sayantika received an invitation from Raj Bhavan to be sworn in on June 26. Reyat received a similar letter on June 25. Both wrote to the Governor that they wanted their oaths to be administered at the assembly by the Speaker, not at Raj Bhavan.

Tensions rose on various flanks at once. The two MLAs began a dharna at the assembly on June 26 that was to last over a week. On June 27, Speaker Banerjee wrote to President Droupadi Murmu, seeking her intervention. The same day, Mamata amped up the heat, saying: "Women have informed me they are not feeling safe to visit Raj Bhavan due to recent incidents reported there." Harking back to an episode from May that had marked the nadir in ties, it brought on Bose's defamation case on June 28, eliciting strictures against the CM. The Calcutta High Court, which has not been above a spot of judicial activism when it comes to the TMC regime, said on July 16 that the comments were made in a "reckless" manner and imposed a restraint on defamatory statements.

Crescendo had not been hard to achieve. On July 4, the Governor assigned deputy speaker Asish Banerjee to administer the oaths. However, on July 5, Speaker Banerjee presided over the swearing-in himself, claiming the rules of procedure allowed him to do so. This time, Bose wrote to President Murmu accusing the Speaker of violating the Constitution. Raj Bhavan maintains that the law mandates the legislators to "make before the Governor, or some person appointed in that behalf by him, an oath or affirmation according to the form set out for the purpose in the Third Schedule". It points to past instances of elected members being sworn in before the Governor at Raj Bhavan. For example, it says Mamata herself, Jakir Hossain and Amirul Islam were elected in bypolls in 2021 and Dhankhar swore them in.

On July 12, the state government fired a new salvo at Bose, filing a petition in the Supreme Court against him for stalling eight bills passed by the assembly, six of which were cleared when Dhankhar was in office. Seven of them relate to an issue that has been fodder for conflict in Bengal for long: the appointment of vice-chancellors, including provisions for the CM and the state education minister replacing the governor as chancellor and visitor in state and private universities respectively. On July 8, in a shot in the arm for the state, the SC had ordered the setting up of a joint search selection committee to be headed by former CJI U.U. Lalit to appoint V-Cs to state universities in Bengal. Raj Bhavan denies any bills are pending on account of "any lapses at the Governor's end" and, instead, counters that clarifications sought on the West Bengal (Prevention of Lynching) Bill 2019 were yet to be received from the state government.

Meanwhile, the controversy that had irredeemably blackened the whole landscape of relations between the two sides too attained a higher orbit—with the Supreme Court stepping in. On May 2, a female contractual staffer of Raj Bhavan had lodged a police complaint, alleging sexual harassment by the Governor. According to the complainant, Bose had called her on the pretext of offering her a better job and molested her on two occasions—April 24 and May 2. She asked for the CCTV footage to be examined to buttress her claims. Later, an FIR was lodged against Raj Bhavan staffers for trying to prevent her from filing her complaint—this was stayed by the HC.

On July 19, a Supreme Court bench headed by CJI D.Y. Chandrachud agreed to examine the question raised in a writ petition filed on behalf of the complainant: the immunity from criminal charges enjoyed by governors under Article 361 of the Constitution, which has till now thwarted any police probe into the charges. The plea argues that complaints of this nature are time-sensitive and hence a probe must not be debarred by immunity clauses till Bose demits office. "The police must carry out an investigation and record the Governor's statements," says Udayaditya Banerjee, the complainant's advocate. "The woman contractual staffer who suffered sexual harassment feels remediless."

The Governor has all along rubbished the allegation and called it part of a politically "engineered narrative". On July 19, Raj Bhavan wrote on its X handle: "Immediately after the 02 May, 2024 fabricated allegations came to light an in-house judicial enquiry was conducted by a former Judge." A day after the SC agreed to hear the complainant's plea, the han-